

GZ: 2022-0.585.764 dated August 23, 2022 (Case Number: DSB-D550.509)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

Criminal Finding

Accused: A***, born on XXX

You have, as the responsible party within the meaning of Art. 4 No. 7 of Regulation (EU) 2016/679 on the protection of natural persons in the processing of personal data, on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation, hereinafter: "GDPR"), OJ No. L 119 of May 4, 2016, p. 1, as amended, committed the following administrative offenses by realizing the following facts:

I.

As the responsible party, during the period from June 1, 2020, to July 31, 2020, on three different days, but certainly on July 24, 2020, for a duration of nine to twelve hours each day (hereinafter "Offense Period") in XXX in one of the (public) restroom facilities located there (hereinafter "Crime Scene"), you unlawfully and without a legitimate purpose processed personal data by installing and operating a (hidden) image processing device (WiFi camera) within a toilet stall. As a result, you secretly recorded affected individuals while they were using the restroom facility. The specific processing occurred without the knowledge and thus also without the consent of the affected individuals and cannot be justified under any of the other legal bases stipulated in Art. 6 para. 1 GDPR.

As a result, you, as the responsible party, violated the following principles of the GDPR:

- Principle of processing personal data lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fairness, Transparency")
- Principle of processing personal data for specified, explicit, and legitimate purposes ("Purpose Limitation")
- Principle of processing personal data that is adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("Data Minimization")

II.

You have also, as the responsible party, violated your information obligation under Art. 13 GDPR at the Crime Scene during the Offense Period by failing to provide suitable signage regarding the video surveillance system in question at the Crime Scene, which would have informed the affected individuals at the time of the collection of their personal data about the image processing within the toilet stall in accordance with Art. 12 and 13 GDPR.

As a result, you, as the responsible party, violated the following principle of the GDPR:

- Principle of processing personal data lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fairness, Transparency")

Administrative offenses according to:

Ad. I.: Art. 5 para. 1 lit. a, b, and c as well as Art. 6 para. 1 lit. f in conjunction with Art. 83 para. 1 and 5 lit. a GDPR OJ L 2016/119, p. 1, as amended

Ad. II.: Art. 5 para. 1 lit. a in conjunction with Art. 12 and 13 in conjunction with Art. 83 para. 1 and 5 lit. a GDPR OJ L 2016/119, p. 1, as amended

Due to these administrative offenses, the following penalty is imposed:

Fine of Euro

if this is uncollectible,

substitute imprisonment of

according to

€ 25,000,-

336 hours

Art. 83 para. 1 and 5 lit. a GDPR in conjunction with § 16

Administrative Penal Act 1991 – VStG

Furthermore, you are to pay according to § 64 of the Administrative Penal Act 1991 – VStG: Euro as a contribution to the costs of the criminal proceedings, which is 10% of the fine, but at least 10 Euro;

Euro as compensation for cash expenses for

2,500,-

total amount payable (fine/costs/cash expenses) is therefore

€27,500.00

Payment deadline:

If no appeal is filed, this penalty notice is immediately enforceable. In this case, the total amount must be paid within two weeks after the legal force takes effect to the account BAWAG P.S.K.,

Georg-Coch-Platz 2, 1018 Vienna, IBAN: AT460100000005490031, BIC:

BAWAATWW,

in the name of

the

Data Protection Authority,

with the purpose of use indicating the business number and the date of resolution.

If payment is not made within this period, the total amount may be collected. In this case, a flat-rate cost contribution of five euros is to be paid. If payment is still not made, the outstanding amount will be enforced, and in the event of its uncollectibility, a corresponding substitute imprisonment will be executed.

Justification:

1.

Regarding the procedural history:

1.1. The State Police Directorate XXX (hereinafter "LPD") submitted a statement of facts to the Data Protection Authority (hereinafter "DSB") via email on May 17, 2021 (GZ: XXX). The LPD informed the DSB that the matter was initially forwarded to the Public Prosecutor's Office XXX (hereinafter "StA") due to suspicion of pornographic representation of minors. However, the StA had discontinued the proceedings as no offense under the Criminal Code was fulfilled. The StA had informed the LPD that the matter should be forwarded to the DSB, as there was a suspicion of an administrative offense. The letter from the LPD included a preliminary report, a final report, the interrogation of the accused at the LPD from January 7, 2021, as well as a photographic attachment. The photographic attachment contained images of exemplary recordings from the system. The LPD also informed the DSB that the district data security officer was able to secure approximately 600 videos from the last operation of the system. These could be forwarded to the DSB if necessary.

1.2. The DSB then initiated an administrative penalty procedure against the accused and requested him in a letter dated June 17, 2021, to justify and disclose his income and asset situation.

1.3. The accused, who was represented by a lawyer at that time, submitted a written justification to the DSB in response via email on July 15, 2021, arguing essentially that the GDPR does not apply, as the household exception under Art. 2 para. 2 lit. c GDPR is relevant because the recordings were made exclusively for the "personal use of the accused." He stated that he deleted the recording afterward and did not disclose it to third parties in any case. Furthermore, no personal data of the accused was processed, as no natural person can be identified from the images. Therefore, the GDPR also does not apply. The accused requested the discontinuation of the administrative penalty procedure.

1.4. Due to the lack of disclosure of income and asset situations as well as any potential maintenance obligations, the DSB again requested the accused in a letter dated May 12, 2022, to provide this information. The DSB also requested the accused in a letter dated May 12, 2022, to provide an additional statement regarding the number and periods related to the operations of the system. Furthermore, a request for official assistance was sent to the LPD to obtain all videos secured by the district data security officer (approximately 600) from the last operation of the system on July 24, 2020. The LPD subsequently informed the DSB that the request for official assistance should be forwarded

to the StA, as they were the ones storing the videos or could give the LPD the instruction to forward the videos to the DSB. The DSB then submitted a request for official assistance to the StA and additionally inquired whether criminal proceedings against the accused were still being conducted regarding § 63 DSG, as the administrative penalty procedure is only subsidiarily applicable. The StA informed the DSB in a letter dated May 31, 2022, that the criminal proceedings against the accused were discontinued according to § 190 Z 2 StPO, as there was no factual basis for further prosecution, and simultaneously requested the LPD to forward the existing backup copies of the videos to the DSB. 1.5. The accused submitted a written (supplementary) statement on May 25, 2022, in response to the DSB's request dated May 12, 2022, stating that he had used the system three times on July 24, 2020, throughout the day for three to four hours each time because the battery needed to be replaced. He also indicated that he is self-employed and earns a monthly income from this. Income of EUR 1,730. He has no assets or care obligations.

1.6. The DSB subsequently invited the accused to an interview via video conference. The accused complied with the summons and was interviewed on June 14, 2022. During the interview, the accused admitted to the allegations and stated regarding his income that he would have a net amount of EUR 4,000 (12 times a year) remaining after deductions and taxes. He earns his income from renting out XXX and still needs to set aside reserves for maintenance. After setting aside the reserves, he has a net amount of EUR 1,730 remaining per month (14 times a year). In this context, the accused submitted a breakdown of his income to the DSB in writing after his interview. However, the figures pertain to the year 2020, as he has not yet completed his accounts for 2021. Regarding his assets, he stated that he owns three motor vehicles, an apartment, and a savings contract (asset value see below). Finally, the accused informed the DSB that he would no longer be represented by the designated representative and that the DSB should therefore address all correspondence to him personally again.

Assessment of Evidence: The findings made so far regarding the course of the proceedings are undisputed and also arise from the content of the files of the relevant administrative penalty case.

2.

The following decision-relevant facts are established:

2.1. The accused initially acquired the relevant device for the purpose of clarifying certain circumstances regarding his mother's residence. Feces and urine were repeatedly left in front of his mother's residence. Additionally, tomatoes and chilies were eaten inside his mother's greenhouse. To clarify these circumstances, the accused purchased a WiFi camera, as it could be operated both with a power connection and wirelessly via battery. In the course of this application, the accused eventually came up with the idea of installing and operating the camera inside public restroom facilities at the crime scene.

2.2. The accused then installed and operated the relevant image processing system during an unspecified period, but certainly between June 1, 2020, and July 31, 2020, on a total of three different days, each for a duration of nine to twelve hours distributed over the respective day, within two different (public) restroom facilities at the crime scene. The last use of the camera during this period occurred on July 24, 2020. This last installation was eventually discovered and secured by law enforcement. Based on the secured videos, it could be proven that the accused was the operator of the relevant device.

2.3. The device was installed and operated at different positions within the affected restroom facilities. The device was installed once below the sink and twice on the tiled wall directly behind the toilet (approximately at buttock height and hidden with a cover). The different recording areas of the device within the toilet stalls were specifically as follows:

Recording Area 1:

XXX

Recording Area 2:

XXX

Recording Area 3:

XXX

[Note from the editor: The image files inserted at this point, which show the recording areas of the

cameras, are not reproduced in the RIS.]

Assessment of Evidence: The findings made so far are undisputed and are primarily based on the statements of the accused during his interview (see minutes of the accused's interview from June 14, 2022, questions 1 and 2) and the written statement of the accused from May 25, 2022, as well as the incident report from the LPD dated November 25, 2020, and the final report dated January 19, 2021, to the public prosecutor's office, including photographic attachments.

The findings regarding the specific recording area arise from the photographic attachments as well as from the videos of the device that were secured (partially restored) by the district data security officer, which were transmitted to the DSB by the LPD. The videos are on an encrypted USB stick, which was attached to the administrative penalty file. After reviewing the videos, the DSB was able to determine that the accused, as the operator of the device, chose the positions for the camera within the toilet stalls at the crime scene as depicted above. It is noted here that not all 600 secured videos could be reviewed by the DSB, as, as already detailed by the LPD in its incident report, not all videos from the last installation or the last use of the device (on July 24, 2020) could be fully restored by the district data security officer. Therefore, the DSB was only able to review a fraction of the 600 videos.

As a result, only the recording areas 1-3 depicted above can be established/proven.

****Findings Regarding the Time and Place of the Offense****

The findings regarding the time and place of the offense arise particularly from the statements made by the accused and are thus undisputed. In the written statement dated May 25, 2022, the accused detailed the process of an installation. The accused stated that he operated the device three times throughout the day during a deployment, for three to four hours each time, as the battery had to be replaced twice during the day (the battery life of the device was, according to the accused, three to four hours). Thus, the device was operated for a total of nine to twelve hours over the course of the respective day during the deployment. During the interrogation of the accused on June 14, 2022, at the DSB, the accused clarified in response to a question from the DSB (see the record of the interrogation of the accused, question 2) that his statement from May 25, 2022, referred to the installation found by the authorities on July 24, 2020. Furthermore, the accused installed and operated the camera two more times in a restroom facility at the crime scene. Therefore, the accused used the device on a total of three different days for several hours each time during the period from June to July 2020. His last installation of the camera on July 24, 2020, was the one discovered and secured by the authorities. Since then, he has not made any further deployments.

The specific period or the specific days of the two other deployments could not be established. The accused only stated that he operated the device two additional times besides his last installation on July 24, 2020. When asked, the accused indicated the period from June to July 2020. The accused could not remember the specific days during his interrogation at the LPD or at the DSB. The specific period of the two other deployments could not be determined from the secured videos, as they had already been deleted by the accused. The accused deleted the videos from the storage medium after each deployment as soon as he viewed them.

The finding that the device was not operated continuously throughout the entire day, but rather for a duration of nine to twelve hours distributed over the respective day of installation, as the battery of the device had to be replaced in the meantime, also arises from the statements made by the accused (see the statement of the accused from May 22, 2022, where he detailed the process of a deployment based on his last installation from July 24, 2020).

****2.4.**** The device was equipped with a motion sensor and therefore did not record continuously. The device was set by the accused to "record on motion detection." As soon as a person entered the recording area, the device triggered a recording.

****2.5.**** The device was hidden during each deployment using a cover. The affected individuals were not informed about the use of the device within the public toilet stalls or restroom facilities at the crime scene. There was a complete lack of signage for the device at the crime scene.

****2.6.**** The recordings of the device were stored on the integrated storage medium until the accused

viewed them. After that, the accused deleted the recordings from the device's storage medium.

****2.7.**** The accused pursued a "technical interest" with the installations within the stalls. The decision to test the camera within public restroom facilities was made by the accused because it had a "certain allure of the forbidden."

****Evidence Assessment:**** The findings made so far are also undisputed and arise from the incident report of the LPD dated November 25, 2020, as well as from the statements made by the accused during his interrogation on January 7, 2021, at the LPD and on June 14, 2022, at the DSB.

The finding that the device was set by the accused to "record on motion detection" and therefore did not record continuously arises from the statement of the accused dated May 25, 2022. The finding that the affected individuals were not informed about the processing due to the lack of signage arises from the fact that the device was operated hidden by a cover and from the intention of the accused to operate the device discreetly within the public restroom facilities. The finding that the device was operated hidden by a cover arises from the incident report of the LPD dated November 25, 2020.

****2.8.**** Among the affected individuals, there was certainly also a minor, although it cannot be established whether the minor undressed or changed clothes in the recording area of the device.

****Evidence Assessment:**** The finding regarding the recording of a minor is based on one of the secured videos, which was viewed by the DSB ex officio. The video is located on an encrypted USB stick and is part of the administrative penalty file in question. However, only the concluding part of the toilet visit is visible in the video. In any case, a minor and an (accompanying) adult person are visible. The minor is at the sink, while the adult person flushes the toilet (the sound of the flush is clearly audible). After that, both individuals leave the restroom facility. It is not evident from the video that any of the affected individuals were in front of the camera.

****2.8.**** The recording that depicts the access and further stay of the affected individuals within the restroom facility could obviously not be restored, nor could this recording be reproduced by the DSB. Therefore, it could not be determined whether any of the affected individuals undressed before the recording area, although the operation of the flush could be an indication of this.

****2.9.**** The imaging system in question was a WiFi camera that could be operated wirelessly for a duration of three to four hours (battery life) using a battery, without being connected to the power grid. The camera also had an integrated storage medium to save the triggered recordings. After using the system, the accused dismantled the camera and reviewed the recordings. Subsequently, the accused deleted the recordings and prepared for the next installation on another day.

****2.10.**** The recordings of the system with recording area 1 (see above) or the image data per se allowed for the identification of a natural person. The recording area captured the entire body and thus also the face of the affected person. In recording areas 2 and 3, identification was only possible if the affected person bent down, as the face of the person was generally not visible in the recording area.

****Evidence Assessment:**** The findings are primarily based on the following pieces of evidence: (1) Incident report from the LPD dated November 25, 2020, including photographic annex, (2) Final report from the LPD dated January 19, 2021, (3) Transcript of the interrogation of the accused by the LPD dated January 7, 2021, and (4) Transcript of the interrogation of the accused by the DSB dated June 14, 2022 (see questions 2 and 3), and in particular the secured videos that were transmitted to the DSB. The accused stated in his written justification dated July 15, 2021, among other things, that no processing of personal data was carried out by him, as the information from the recordings did not relate to any identified or identifiable person. This assertion by the accused is qualified as a mere defensive claim and can be particularly refuted by the videos secured by the district data protection officer. The DSB was able to determine, after reviewing the videos that could be played back, that the recordings from recording area 1 certainly allowed for the identification of natural persons based on the image data. Although the recordings had to be converted by the DSB to a different file format with lower resolution in order to be played back, identification of the affected person based on the image data was still possible even with the reduced resolution. It is also evident from the photographic annex

of the LPD dated November 25, 2020, that the accused essentially chose three different recording areas. In recording areas 2 and 3, the intimate area of the affected individuals was predominantly captured. Only in isolated recordings did a person (the cleaner responsible for the hygiene plan of the restroom facilities) bend down to clean the toilet. In the photographs numbered 13 to 15, recording area 1 is visible. It can already be seen from these photographs that the entire body and thus also the face of an affected person was captured upon entering the restroom facility. It should be noted regarding the resolution of these photographs that they were taken with a different device (the officers of the LPD apparently did not take screenshots but photographed the screen where a recording from the system was being played back). The recordings themselves show a sharper image. The remaining findings are undisputed.

****2.11.**** During his interrogation by the DSB on June 14, 2022, the accused expressed remorse and was ashamed of his behavior. The accused admitted to the act. He stated to the DSB that he would refrain from such installations in the future and that there were no further installations after the one recently found by the authorities. The accused also stated to the LPD that he would only pursue his technical interests in a "legal manner" from now on.

****Evidence Assessment:**** The findings are based on the own statements of the accused during his interrogation on June 14, 2022, at the DSB and on January 7, 2021, at the LPD, and are therefore undisputed.

****2.12.**** The accused earns a monthly net income of EUR 3,970 from the rental of XXX (12 times a year, annual net income EUR 47,640). For the maintenance of XXX, the accused set aside reserves totaling EUR 23,426 for the year 2020. The accused stated that after deducting the reserves, he receives a monthly net income of EUR 2,018 (12 times a year).

****2.13.**** The accused has no debts and no maintenance obligations.

****2.14.**** The accused stated regarding his assets that he owns several motor vehicles, including two XXX valued at EUR 40,000 each. In addition, the accused has a condominium valued at approximately EUR 120,000 (according to his own statements) and a savings contract amounting to EUR 7,000.

****Evidence Assessment:**** The findings are based on the own statements of the accused during his interrogation on June 14, 2022, at the DSB and the... subsequent transmission (by email dated June 15, 2022) of the itemized monthly income. The findings made are therefore undisputed.

3.

Legally, it follows:

3.1. Regarding the scope of application of the GDPR and the jurisdiction of the DSB

3.1.1. Both the material and territorial scope of the GDPR in the sense of Articles 2 and 3 of the GDPR apply in the present case. The accused argued in this context that the material scope was not applicable because the household exemption under Article 2(2)(c) of the GDPR was relevant. The accused claimed to have recorded the footage solely for personal interests and viewed it before deleting it ("personal use of the accused"). There was no disclosure to third parties (see written justification dated July 15, 2021).

3.1.2. The DSB does not share the accused's view regarding the household exemption. The accused installed and operated the system within a public restroom facility, which was used by several individuals both for their bodily needs and for changing clothes. The recording area of the system thus captured public space and recorded individuals during a very intimate moment.

3.1.3. The European Court of Justice (hereinafter "ECJ") has already stated in this context that the operation of a video surveillance system installed by a natural person at their single-family home to protect the property, health, and life of the homeowner, which records videos of individuals on a storage device such as a hard drive while also monitoring public space, does not constitute data processing that is carried out exclusively for personal or family activities within the meaning of the provision under Article 3(2) second indent of Directive 95/46/EC (cf. ECJ December 11, 2014, C-212/13, para. 33 et seq.). The case law regarding this directive provision can be applied in the same

manner to the provision under Article 2(2)(c) of the GDPR, as this provision was adopted within the framework of the GDPR. In the present case, it is therefore excluded that the exception of the household exemption applies due to the specific recording area (public space).

3.1.4. Article 83(5)(a) of the GDPR stipulates that in the event of violations of the provisions of Articles 5, 6, 7, and 9 of the GDPR, fines of up to 20,000,000 Euros or, in the case of an enterprise, up to 4% of its total worldwide annual turnover of the preceding financial year may be imposed, depending on which amount is higher. According to Section 22(5) of the DSG, the jurisdiction for imposing fines on natural and legal persons for Austria as the national supervisory authority lies with the DSB.

3.1.5. As a result, the GDPR applies to the specific case, and the DSB is both materially and territorially competent for the administrative penalty proceedings in question.

3.2. Regarding the unlawful operation of the image processing system (Decision Point I.)

3.2.1. According to the definition in Article 4(1) of the GDPR, personal data is any information relating to an identified or identifiable natural person (hereinafter "data subject"); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more specific characteristics that express the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person.

3.2.2. According to the case law of the VwGH regarding Section 4(1) of the DSG 2000, image data such as video recordings are generally included in the concept of personal data, as identifiability is usually given. There is no identifiability and thus no personal data only if the technical resolution of the image does not allow for identification (cf. VwGH September 12, 2016, Ro 2015/04/0011). The ECJ has also commented on the personal reference of image data and stated regarding the definition in Article 2(a) of Directive 95/46/EC that an image recorded by a camera of a person falls under the concept of personal data, provided it enables the identification of the data subject (cf. ECJ December 11, 2014, C-212/13, para. 22).

3.2.3. In the present case, the DSB has determined during the investigation proceedings and after reviewing the seized videos that the image data from recording area 1 certainly allowed for the identification of the affected individuals. Thus, the image data in the recordings of the system, according to the above explanations, constitute personal data in accordance with Article 4(1) of the GDPR.

3.2.4. The GDPR defines the term processing in Article 4(2) of the GDPR by enumerating a series of possible usage operations. This includes collecting, recording, organizing, structuring, storing, adapting or altering, retrieving, consulting, using, disclosing by transmission, dissemination or otherwise making available, aligning or combining, restricting, deleting or destroying.

3.2.5. The recordings made by the image processing system in the present case, which were triggered by motion detectors during the time of the offense, therefore represent a processing of personal data within the meaning of Art. 4 No. 2 GDPR.

3.2.6. The accused can also be qualified as the controller in terms of Art. 4 No. 7 GDPR for the specific data processing, as he alone made the decision to install and operate the system within the restroom facilities at the crime scene. No assertion was made throughout the proceedings by the accused that he would not be a controller. Rather, the accused admitted that he installed and operated the system out of a "certain thrill of the unlawful" within the restroom facilities.

3.3. Assessment of the processing in question in light of the principles according to Art. 5 GDPR

3.3.1. For the assessment of the processing in question, it can initially be stated that Art. 5 GDPR establishes the principles for the processing of personal data. The principle according to Art. 5 para. 1 lit. a GDPR stipulates in this context that personal data must be processed lawfully, fairly, and in a transparent manner in relation to the data subject ("Lawfulness, Fairness, Transparency"). The requirements for lawful processing (of non-sensitive data) are specified in Art. 6 GDPR. According to this, the lawfulness of any processing requires that the processing—cumulatively with the other principles regulated in Art. 5 para. 1—must meet at least one of the legal grounds conclusively set out in Art. 6 para. 1 GDPR (cf. Selmayr in Ehmann/Selmayr, General Data Protection Regulation,

Commentary², Art. 5 Rz 8f).

3.3.2. The principle according to Art. 5 para. 1 lit. b GDPR stipulates that the processed data may only be collected for specified, explicit, and legitimate purposes and may not be further processed in a manner incompatible with those purposes ("Purpose Limitation"). Furthermore, the principle according to Art. 5 para. 1 lit. c GDPR states that the processing must be adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ("Data Minimization"). The accused violated all of the aforementioned principles during the data processing.

3.3.3. The accused only stated regarding the lawfulness of the processing that he pursued a "technical interest" (Art. 6 para. 1 lit. f GDPR). Furthermore, the accused did not present any additional legal grounds for the processing.

3.3.4. Processing based on the consent of the data subjects (Art. 6 para. 1 lit. a GDPR) is already excluded because the processing, as established, occurred secretly or without informing the data subjects. Thus, the data subjects could logically not have given consent to the data processing. It is also not to be assumed that the data subjects would have consented to such processing, as the processing concerns one of the most intimate moments of a person.

3.3.5. In the present case, after an ex officio examination, only the justification under Art. 6 para. 1 lit. f GDPR is applicable, as already presented by the accused. Therefore, the existence of legitimate interests of the accused or third parties in the sense of Art. 6 para. 1 lit. f GDPR must be examined.

3.3.6. Regarding the lawfulness of processing operations in relation to Art. 6 para. 1 lit. f GDPR, Recital 47 of the GDPR explains, among other things, that this can be based on the legitimate interests of a controller, provided that the interests or the fundamental rights and freedoms of the data subject do not override them; the reasonable expectations of the data subject based on their relationship with the controller must be taken into account. In any case, the existence of a legitimate interest must be weighed particularly carefully, and it must also be examined whether a data subject could reasonably foresee at the time of the collection of personal data and in light of the circumstances under which it occurs that processing for this purpose may take place. Particularly when personal data is processed in situations where a data subject could not reasonably expect further processing, the interests and fundamental rights of the data subject will outweigh the interest of the controller.

3.3.7. Art. 6 para. 1 lit. f of the GDPR permits processing under three cumulative conditions: (i) Pursuit of a legitimate interest; (ii) Necessity of processing; and (iii) No overriding of the rights and freedoms of others (cf. Judgment of the CJEU of 11.12.2019, Case C-708/18, para. 36 with references).

3.3.8. In the specific case, even regarding the first condition (pursuit of a legitimate interest), it is questionable whether the "technical interest" cited by the accused can even represent a legitimate interest. Even if one were to assume in relation to Art. 6 para. 1 lit. f GDPR that the

****3.3.8.**** Even if the accused had a legitimate interest during the time of the offense, nothing is gained for the accused, as the processing was, in any case, not necessary (not the least intrusive means) and the rights and freedoms of the affected individuals far outweigh the technical interest of the accused.

****3.3.9.**** The technical interests could have been ensured by the accused in any case in another way, without so severely infringing on the right to confidentiality of the affected individuals. Repeatedly recording numerous affected individuals within a public restroom to ensure technical interests related to an image processing system constitutes a violation of the data minimization principle according to Art. 5 para. 1 lit. c GDPR. The processing in question was not appropriate and significant for the purpose and was not limited to what is necessary for the purposes of processing, and is in no way comprehensible for the DSB. Therefore, the necessity of processing in this specific case cannot be assumed under any circumstances.

****3.3.10.**** Consequently, there is no need for a balancing of interests, as processing under Art. 6 para. 1 lit. f GDPR cannot be considered due to the lack of necessity. However, it should be noted at this point (without going into detail) that even after conducting a balancing of interests in this specific case, one can only conclude that the confidentiality interests of the affected individuals far outweigh the technical interest of the accused. Furthermore, the system was not marked or was operated

secretly, and therefore the affected individuals could not expect their personal data to be processed in this manner.

****3.3.11.**** Additionally, the accused also disregarded the principle of purpose limitation according to Art. 5 para. 1 lit. b GDPR. The principle of purpose limitation is constitutionally mandated. Art. 8 para. 2 sentence 1 EU Charter of Fundamental Rights guarantees affected individuals that their personal data may only be processed "for specified purposes [...] or on another legally regulated legitimate basis." A purpose that is clearly defined in advance (before the commencement of data processing) must therefore also be legitimate. The purpose is legitimate if the affected individual has approved it through their informed and free consent according to Art. 7 GDPR or if it has been approved by law (even against the will of the affected individuals) (cf. Roßnagel in Simitis/Hornung/Spicker, Data Protection Law, Commentary, Article 5 Rz 63 f).

****3.3.12.**** The DSB found in a similarly situated case that the covert recording of images in the women's changing room did not occur for legitimate purposes in the sense of Art. 5 para. 1 lit. b GDPR (cf. DSB 11.07.2019, D550.185/0002-DSB/2019). The BVwG stated regarding video surveillance in front of a gambling establishment for the purpose of identifying and categorizing individuals as "financial police" and "players" that no legitimate purpose could be recognized therein (cf. BVwG 02.06.2021, W211 2232587-1).

****3.3.13.**** In light of this, one cannot arrive at a different conclusion in the specific case. The purpose cited by the accused is neither legally provided for nor covered, nor have the affected individuals consented to the processing. The covert/secret recording of numerous affected individuals during a very intimate moment to ensure technical interests regarding the image processing system cannot, in the view of the DSB, under any circumstances represent a legitimate purpose in the sense of Art. 5 para. 1 lit. b GDPR. Furthermore, the accused was evidently aware of this at the time of the offense, as he stated during his interrogation with the LPD that he made the decision to test the camera within public toilet stalls because he felt a "certain thrill of the forbidden."

****3.3.14.**** As a result, the legal basis according to Art. 6 para. 1 lit. f GDPR for the specific processing is not applicable. No other legal basis according to Art. 6 para. 1 GDPR can be considered after an official review. The processing of the personal image data thus occurred unlawfully and in violation of the principles of data minimization and purpose limitation.

****3.4. Regarding the lack of marking of the image processing system (Decision Point II)****

****3.4.1.**** The principle of transparency according to Art. 5 para. 1 lit. a GDPR is specified by Art. 12, 13, and 14 GDPR (see also Recitals 39 and 58 GDPR). Accordingly, it must be clear to affected individuals regarding an image processing system that their personal data is being processed, which specific data is being processed, and for what purposes it is being processed. The identity of the controller must also be communicated to the affected individuals so that they know by whom their data is being processed. Furthermore, affected individuals should be informed about risks, regulations, guarantees, and rights related to the processing, as well as about the assertion of these rights. This information must be precise, easily accessible, and understandable, and must be drafted in clear and simple language. The importance of the transparency of processing and thus the information obligation lies particularly in its function as a necessary prerequisite for the exercise of the rights of the affected individuals: If the affected individual is not aware that their data is being processed, and/or does not know who is processing this data...

conducts, he cannot assert his rights in this regard under Articles 15-21 GDPR" (cf.

Hötzendorfer/Tschohl/Kastelitz in Knyrim, DatKomm Art 5 GDPR, para. 18f).

3.4.2. Due to the amount of information that is to be provided to a data subject, a "layered approach" and a combination of means can be chosen by a controller to comply with the transparency requirement. In the context of video surveillance, the most important information should be presented in a warning notice, while the necessary additional information can be made available through other means (as a second layer) (cf. European Data Protection Board, Guidelines 3/2019 on the processing of personal data through video devices, 29.01.2020, pp. 28ff, available online at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-32019-processing-personal-data-through-video_de – hereinafter referred to as "Guidelines"). The data subjects must be able to recognize in a timely manner due to the labeling that they are entering an area monitored by an image processing system.

3.4.3. In the specific case, the accused did not place any labeling at the crime scene regarding the image processing system. The accused did this deliberately, as he wanted to record the data subjects secretly. Thus, the accused violated the transparency requirement under Art. 5 para. 1 lit. a GDPR as well as his information obligation under Art. 12 and 13 GDPR by not informing the data subjects about the specific data processing when collecting their personal data in accordance with Art. 13 GDPR. Due to the lack of labeling or warning signs, the data subjects could not expect that they were in the recording area of the relevant system during a very intimate moment and would be recorded. Therefore, they could not assert their rights under Articles 15-21 GDPR against the accused.

3.4.4. In light of the facts assumed to be proven, the accused, in his role as controller, has thus unlawfully processed personal data and violated his information obligation. Therefore, the objective element of both points of adjudication is fulfilled.

3.5. Regarding the subjective element

3.5.1. It should be noted regarding the subjective element that the accused consciously installed and operated the image processing system within a public restroom facility to fulfill his technical interests. The accused also consciously decided not to place any labeling at the crime scene regarding the image processing system or to inform the data subjects about the specific data processing, as he wanted to operate the system secretly (hidden by a cover). Throughout the entire proceedings, the accused did not present anything to the contrary but admitted to the act as well as the conscious decision to install the image processing system hidden in a restroom facility.

3.5.2. Therefore, the DSB concludes that the accused acted intentionally in relation to both points of adjudication. Throughout the entire proceedings, there were no indications that the accused was not at fault for the violation of the relevant provisions. The accused's statement during his hearing at the DSB, that he used the recordings exclusively for personal purposes and not for harming or blackmailing a person or for economic interests, does not change this.

3.5.3. Thus, there is culpability on the subjective element in the form of intent as defined in Art. 83 para. 2 lit. b GDPR.

4. Regarding the determination of penalties, the following should be noted:

4.1. According to Art. 83 para. 1 GDPR, the DSB must ensure that the imposition of fines for violations under paragraphs 5 and 6 is effective, proportionate, and deterrent in each individual case.

Furthermore, para. 2 stipulates that when deciding on the imposition of a fine and its amount, the following must be duly considered in each individual case:

- a) the nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing in question, as well as the number of data subjects affected by the processing and the extent of the damage suffered by them;
- b) the intentionality or negligence of the violation;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical and organizational measures they have implemented in accordance with Articles 25 and 32;
- e) any relevant previous violations by the responsible party or the processor;
- f) extent of cooperation with the supervisory authority to remedy the violation and mitigate its possible adverse effects;
- g) categories of personal data affected by the violation;
- h) manner in which the violation became known to the supervisory authority, in particular whether and to what extent the responsible party or the processor reported the violation;
- i) compliance with measures previously ordered against the responsible party or processor regarding the same subject matter under Article 58(2), if such measures were ordered;
- j) [...]
- k) any other aggravating or mitigating circumstances in the specific case, such as financial benefits obtained directly or indirectly through the violation or avoided losses.

4.2. The determination of penalties within a statutory penalty framework is a discretionary decision to be made according to the criteria established by the legislator in § 19 VStG (cf. VwGH 05.09.2013,

2013/09/0106).

4.3. According to § 19(1) VStG, the basis for determining the penalty is the significance of the legally protected interest and the intensity of its impairment by the act. Furthermore, according to the purpose of the penalty, the relevant aggravating and mitigating factors, insofar as they do not already determine the penalty, must be weighed against each other. Special consideration must be given to the extent of culpability. Taking into account the nature of administrative criminal law, §§ 32 to 35 of the Criminal Code shall apply *mutatis mutandis*. The income and asset situation and any maintenance obligations of the accused shall be considered when determining fines; however, this only to the extent that the directly applicable provisions of the GDPR do not displace the provisions of the VStG and to the extent that is ordered by Article 83(8) GDPR and Recital 148 with regard to the procedural guarantees to be ensured.

4.4. If a fine is imposed on a natural person, a substitute imprisonment must be set at the same time for the case of its uncollectibility according to § 16(1) VStG. The substitute imprisonment must not exceed the maximum of the imprisonment threatened for the administrative offense and, if no imprisonment is threatened and nothing else is specified, two weeks.

4.5. Article 83(3) GDPR provides that, deviating from the accumulation principle established in § 22(2) VStG, in cases of identical or interconnected processing operations that intentionally or negligently violate multiple provisions of the GDPR, the total amount of the fine shall not exceed the amount for the most serious violation. Thus, within the scope of the GDPR – as applied in the present case – the absorption principle of Article 83(3) GDPR applies.

4.6. The penalty framework in the specific case extends up to an amount of EUR 20,000,000 according to Article 83(5) GDPR.

4.7. Regarding the present case, the following aggravating factors were considered in the determination of the penalty:

- Nature, duration, and severity of the violation: The accused unlawfully interfered with the fundamental right to confidentiality of numerous affected individuals through the processing in question. The accused used the image processing system a total of three times (each for several hours distributed over the respective day of installation) within a period of two months. The intensity of the interference was considered particularly aggravating, as the accused made a highly significant intrusion into the fundamental rights of the affected individuals. The public restroom facilities at the crime scene were and are used by affected individuals to relieve themselves and/or change their clothing. The affected individuals could not have expected to be secretly recorded by an image processing system during a very intimate moment and that the recordings would subsequently be viewed by the accused. This severely violated their right to confidentiality under § 1(1) DSG as well as the respect for private and family life and the right to protection of personal data under Articles 7 and 8 EU Charter of Fundamental Rights (Article 83(2)(a) and (k) GDPR).

- Categories of personal data affected by the violation: In this specific case, while there were no sensitive data *per se* in the sense of Article 9(1) GDPR, particularly intimate image data of the affected individuals were affected by the violation (Article 83(2)(g) GDPR).

- The violation was committed intentionally by the accused. The fact that the accused knowingly and willfully made the decision multiple times to pursue his technical interest by installing the camera in a public restroom facility was considered particularly aggravating.

to comply, as it had a "certain allure of the unlawful" (Art. 83 para. 2 lit. b GDPR).

4.8. In relation to the present case, the following mitigating factors were considered in the determination of the penalty:

- There were no relevant prior convictions against the accused recorded with the DSB due to violations of the GDPR or the DSG.

- Participation in the administrative penalty proceedings: The accused responded to the DSB's requests in the administrative penalty proceedings in a timely manner and complied with the summons for questioning via video conference. This demonstrated his cooperation in the DSB's investigative process and contributed to the establishment of the truth. This was taken into account as a mitigating

factor.

- The accused admitted to the DSB that he secretly recorded within the restroom facilities (confession) and stated multiple times that he would refrain from such processing in the future ("it was a one-time foolishness"). During his questioning on June 14, 2022, the accused appeared remorseful and gave the impression that he regretted his actions and wished to close this chapter. These circumstances were also considered as mitigating factors.

4.9. The accused's assertion that there were no harmed individuals and that this should also be considered as a mitigating factor cannot be substantiated by the DSB. The interference by the accused with the fundamental right to confidentiality of the affected individuals was assessed by the DSB, as stated above, as serious, and the confidentiality interests of the affected individuals were severely violated by the accused. Furthermore, a lack of damage, according to the case law of the VwGH, is not considered a mitigating factor in the context of a disobedience offense as defined in § 5 para. 1 second sentence VStG (see VwGH March 31, 2000, 99/02/0352; December 16, 1998, 98/03/0222). From the assertion that the accused only viewed the recordings personally and did not use them to harm or blackmail a person or for economic interests, the DSB believes that no penalty reduction can be derived for the accused.

4.10. Regarding the income of the accused, the DSB assumed a monthly net income of EUR 3,979 (12 times a year). The accused's view that the reserves he must set aside for the maintenance of the XXX should be deducted when determining his income, thus resulting in a monthly net income of EUR 2,018 (12 times a year) as the basis for calculating the fine, is not supported by the DSB.

4.11. In this context, it should first be noted that according to the case law of the VwGH, the term "income" used in § 19 para. 2 VStG is not identical to the term "taxable income" under the Income Tax Act (EStG 1988) (see VwGH February 21, 1989, 88/05/0222). Liabilities such as leasing rates for a motor vehicle (see OLG Vienna June 28, 1988, 23 Bs 287/88) or loan rates for a condominium (see Wessely in Rauscher/Wessely, VStG2 § 19, Rz 21c with reference to OGH ZVR 1989/164) must therefore be disregarded. The same applies to the reserves cited by the accused for maintenance work concerning his rented XXX. For completeness, reference can also be made to the consistent case law of the VwGH regarding the imposition of fines, which states that fines can also be imposed on individuals who have no or only a low income. The fine is therefore permissible even if the financial and income circumstances of the punished individual make it likely that they will not be able to pay it (see VwGH January 30, 2014, 2013/03/0129). Furthermore, the existence of unfavorable income and asset conditions does not imply a right to impose the minimum penalty (see VwGH October 1, 2014, Ra 2014/09/0022 with reference to VwGH September 16, 2009, 2009/09/0150).

4.12. In determining the penalty, considerations of special prevention and general prevention may also be included according to the consistent case law of the VwGH (see VwGH May 15, 1990, 89/02/0093, VwGH April 22, 1997, 96/04/0253, VwGH January 29, 1991, 89/04/0061). Supervisory authorities must also ensure, according to Art. 83 para. 1 GDPR, that fines are effective, proportionate, and deterrent in each individual case.

4.13. One of the essential objectives of the GDPR, according to Art. 1 para. 2 GDPR, is the protection of the fundamental rights and freedoms of natural persons, and in particular their right to the protection of personal data under Art. 8 EU Charter of Fundamental Rights. The accused has severely violated the fundamental rights of the affected individuals, as stated above. The imposition of the specific fine is therefore necessary in any case in a general preventive sense to raise awareness among those responsible for operating image processing systems, particularly regarding the fact that such processing for the purpose of ensuring technical interests does not find justification under the legal basis of Art. 6 para. 1 lit. f GDPR.

4.14. The DSB assumes that the accused will refrain from making such recordings in the future. The accused has stated to the DSB on several occasions that he will refrain from such recordings in the future. Therefore, in the opinion of the DSB, there are no specific preventive reasons present.

4.15. The specific fine imposed in the amount of EUR 25,000 appears, in light of the above-mentioned criteria for determining penalties, particularly the significant degree of wrongdoing involved, for general preventive reasons, and the gross culpability of the accused, as well as taking into account the income and asset situation of the accused and the available penalty range under Art. 83 para. 5 GDPR (here

up to EUR 20,000,000), to be appropriate in relation to the act and the culpability.